

**SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF RICHMOND**

X

MICHAEL LEWIS

Plaintiff,

-Against-

SUMMONS

Index No.

Date Index No. Purchased.

Plaintiff Designates Richmond

County as the Place of Trial

Basis of Venue is Pursuant to CPLR 503

Jury Trial Demanded

CITY OF NEW YORK, THE NEW YORK
 CITY POLICE DEPARTMENT, P.O. CHRISTOPHER
 REYES, SHIELD NO. 24403, IN HIS INDIVIDUAL CAPACITY,
 P.O. ALEXANDRA DANNA, SHIELD NO. 26198, IN HER INDIVIDUAL
 CAPACITY, P.O. MICHELLE ABRAHAM, SHIELD NO. 1124,
 IN HER INDIVIDUAL CAPACITY, STATEN ISLAND
 UNIVERSITY HOSPITAL-NORTHWELL HEALTH,
 AND DR. GAVE, IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

You are hereby summoned to answer the Complaint in this action and to serve a copy
 of your answer or if the complaint is not served with this summons, to serve a notice of appearance
 on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the
 day of service (or within 30 days after the service is complete if this summons is not personally
 delivered to you within the State of New York) and in case of your failure to appear or answer,
 judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: January 14, 2022
 Bronx, New York

By Welton K. Wisam, Esq.
 Welton K. Wisam, Esq.
 The Law Offices of Welton K. Wisam
 1200 Waters Place, Suite 105
 Bronx, New York 10461
 718- 924-3557 Office

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

Staten Island University Hospital- Northwell Health
475 Seaview Ave.
Staten Island, New York

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND**

X

MICHAEL LEWIS

**ECF
COMPLAINT**

Index No.

Plaintiff,

-Against-

Plaintiff Designates Richmond
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CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. CHRISTOPHER
REYES, SHIELD NO. 24403, IN HIS INDIVIDUAL CAPACITY,
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IN HER INDIVIDUAL CAPACITY, STATEN ISLAND
UNIVERSITY HOSPITAL-NORTHWELL HEALTH,
AND DR. GAVE, IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

1. Plaintiff, Michael Lewis by his attorney, Welton K. Wisham, of the Law Office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, The New York City Police Department, Police officer Christopher Reyes, the Staten Island University Medical Center and Dr. Gave that;

JURISDICTION

2. This Court has personal jurisdiction over the Defendants because the Defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), Richmond County which caused serious injuries to the Plaintiff within the State of New York.

3. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action arising pursuant to 42 U. S. Code Section 1983.

VENUE

4. Plaintiff selects Richmond County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Staten Island, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

5. Plaintiff, Michael Lewis is a citizen of the United States and at all times here relevant resided in the City of Staten Island, Richmond County, State of New York.

6. That at all times relevant herein, Defendant P.O. Christopher Reyes, Shield No. 24403, was and still is a duly appointed as a police officer within the New York City Police Department and as such was a state actor acting within the scope of his employment as an employee of the New York City Police Department assigned to the 122nd police precinct located at 2320 Hylan Blvd. Staten Island, New York.

7. That officer Reyes was at all times mentioned in this Complaint, an agent, servant, and employee, acting within the scope of his employment by Defendant City of New York, and was acting within his individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

8. That at all times relevant herein, Defendant P.O. Alexandra Danna, Shield No. 26198, was and still is a duly appointed as a police officer within the New York City Police Department and as such was a state actor acting within the scope of her employment as an employee of the New York City Police Department assigned to the 122nd police precinct located at 2320 Hylan Blvd. Staten Island, New York.

9. That officer Danna was at all times mentioned in this Complaint, an agent, servant, and employee, acting within the scope of her employment by Defendant City of New York, and was acting within his individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

10. That at all times relevant herein, Defendant P.O. Michelle Abraham, was and still is a duly appointed as a police officer within the New York City Police Department and as such was a state actor acting within the scope of her employment as an employee of the New York City Police Department assigned to the 122nd police precinct located at 2320 Hylan Blvd. Staten Island, New York.

11. That officer Abraham was at all times mentioned in this Complaint, an agent, servant, and employee, acting within the scope of his employment by Defendant City of New York, and was acting within her individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

12. That the Defendant, City of New York, is a municipal corporation within the State of New York.

13. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

14. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

15. At all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was and remains responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

16. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

17. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

18. That the Staten Island University Hospital- Northwell Health, (SIUH) is a 622-bed teaching hospital located at 475 Seaview Ave. Staten Island, New York that employed Defendant Dr. Gave on the date of the incident set forth throughout this Complaint.

19. Defendant Gave is a medical doctor employed by the Staten Island University Hospital - Northwell health who at all time mentioned is sued in his individual capacity.

PRELIMINARY STATEMENT

20. This is a civil rights action in which Plaintiff seeks financial compensation for the gross violation of his civil rights secured under the provisions of 42 U.S.C Section 1983, and under the Fourth, and Fourteenth Amendments to the Constitution of the United States and under New York State law relating to Plaintiff's false arrest, imprisonment and violations of Due Process of Law.

21. That on May 26, 2021, Mr. Michael Lewis was experiencing severe stomach pain and decided to go to the Staten Island University Hospital for emergency medical treatment.

22. Plaintiff informed the medical staff at SIUH and Dr. Gave that had ingested white paper which he believed was the cause of his stomach pain.

23. Dr. Gave administered an x-ray that revealed a white substance in Plaintiff's stomach which needed surgery to remove. Plaintiff consented to the removal of the substance.

24. Dr. Gave contacted the New York City Police Department before he had confirmation of the existence of Cocaine in Plaintiff's stomach. Dr. Gave informed the NYPD that Mr. Lewis had ingested cocaine.

25. Police officer Christopher Reyes arrived and arrested Plaintiff who was recovery from surgery and as Plaintiff was lying in pain in his hospital bed, officer Reyes placed leg shackles on Plaintiff's legs and handcuffed Mr. Lewis' hands to the top of the bed where Plaintiff remained for three days.

26. Dr. Gave removed the substance and transferred the substance to the SIUH laboratory.

27. Days later the lab report disclosed that the substance inside Plaintiff's stomach **was not a controlled substance.**

28. Mr. Lewis brings this action seeking financial compensation for his past, present, and future pain and suffering stemming from the reckless and outrageous conduct of the Defendants pursuant to 42 U.S. C. Section 1983, and under New York State Law.

FACTUAL ALLEGATIONS

29. That on or about May 26, 2021, Mr. Lewis was experiencing severe stomach pain and decided to seek immediate medical treatment.

30. Plaintiff arrived at the Staten Island University Hospital- Northwell Health Center located at 475 Seaview Ave. Staten Island, New York at approximately 11 a.m.

31. Upon Plaintiff's arrival, Mr. Lewis was told that he had a foreign object in his stomach.

32. The doctors asked Mr. Lewis if he had swallowed a condom.

33. Mr. Lewis denied swallowing a condom and told the doctors that he recalled swallowing white tobacco rolling paper when he was in prison and that the object was not drugs. (Emphasis added)

34. The doctors at the hospital did not believe Plaintiff's explanation of what was inside Plaintiff's stomach and assumed it was a controlled substance.

35. Plaintiff consented to a surgical procedure to remove the white paper from his stomach which was causing Plaintiff severe pain.

36. Mr. Lewis was unconscious during the course of the operation.

37. Upon awakening from the operation, Mr. Lewis found himself bound to his hospital bed with his hands handcuffed to the bed, and both of his feet bound in shackles with police officers guarding the door to his room preventing anyone other than police officers from entering.

38. Mr. Lewis was informed by members of the Staten Island Hospital and by members of the New York City Police Department, including Defendant Reyes, that a controlled substance had been found in Plaintiff's stomach and that he was under arrest.

39. Mr. Lewis was confined to his hospital bed in handcuffs and leg restraints twenty-four (24) hours a day unable to freely move, with police officers guarding his room.

40. Plaintiff was denied visitors who attempted to give their love and support to the Plaintiff.

41. Mr. Lewis was experiencing excruciating pain when he awoke from the surgery.

42. Plaintiff's pain was exacerbated by the Defendant's decision to hold Plaintiff in custody in handcuffs and leg restraints without probable cause or legal justification.

43. Several doctors at the hospital observed Mr. Lewis confined to his bed in handcuffs and leg restraints.

44. Detectives believed to be assigned to the 122nd police precinct entered Plaintiff's hospital room, and began to interrogate Mr. Lewis regarding the source of the alleged drugs.

45. The Detectives told Plaintiff to "Give up a drug dealer on the street so you can get less time".

46. Mr. Lewis keep telling the detectives and officer Reyes that the object inside his stomach which was removed by the doctors at the hospital was white paper, not a drug.

47. The officers, doctors, and medical staff refused to accept Mr. Lewis' account of what was in his stomach insisting that he had ingested Cocaine without having results from the SIUH laboratory.

48. A NYPD detective left Mr. Lewis his business card and told Plaintiff to call him when Plaintiff changes his mind.

49. Officer Reyes in his rush to judgment charged Mr. Lewis with Criminal Possession of a Controlled Substance in the 4th Degree pursuant to Penal Law Section 220.09 (1), and Criminal Possession of a Controlled Substance in the 7th Degree in accordance with Penal Law Section 220.03, both charges are Felonies carrying a maximum sentence of 3 ½ to 15 years of imprisonment.

50. Officer Reyes stated in his Felony Complaint that Mr. Lewis " knowingly and unlawfully possess one or more preparations, compounds, mixtures or substances containing a narcotic drug and said preparations, compounds, mixtures or substance are of an aggregate weight of one-eight ounce or more, and knowingly and unlawfully possesses a controlled substance".

51. Officer Reyes continued his knowingly false accusations against the Plaintiff by stating that Mr. Lewis knowingly and unlawfully possess a narcotic in that deponent observed defendant to have on his person a controlled substance, a black plastic wrapping containing a white powdery substance, to wit: **COCAINE...**" (Emphasis added)

52. The Felony Complaint was filed with the Richmond County District Attorney's Office under Docket No. CR- 002514021R.

53. Mr. Lewis was arraigned inside the hospital as Plaintiff lay in his bed in shackles and handcuffs as the arraignment was conducted virtually via Zoom on what is believed to be officer Reye's telephone.

54. Mr. Lewis continued to assert his innocence and pled not guilty.

55. Mr. Michael E. McMahon of the Richmond County District Attorney's Office informed Mr. Lewis through his Court appointed attorney that the Grand Jury was scheduled to convene on May 27, 2021 at 9:30, am at 130 Stuyvesant Place, Staten Island, New York. Plaintiff was eager to testify at the grand jury and informed his criminal attorney of his request to give testimony.

56. The unknown specimen was removed from Plaintiff's stomach on May 26, 2021, at approximately 10: 01 and given to the Northwell Health Laboratories at approximately 10:27 by Dr. Gave.

57. A sample of the specimen was given to police officer Christopher Reyes by RN Teresa Farina.

58. The Toxicology report of the specimen received on May 26, 2021, was prepared by Staten Island University Hospital- Northwell Health Laboratories Medical Director Lynne M. Optiz, M.D on May 27, 2021.

59. The Toxicology report indicated that several drugs were tested for, i.e., Barbiturates, Opiates, Amphetamines, Cocaine, THC, Phencyclidine Methadone all of which were negative. (Emphasis added)

60. The examination for the presence of Cocaine was taken on May 26, 2021 at 07:30 am which concluded the fact that Mr. Lewis had not possessed Cocaine as alleged by the Defendants.

61. A copy of the Toxicology report was given to Dr. Gave on May 27, 2021.

62. That officer Christopher Reyes knew or should have known that the substance removed from the body of Mr. Lewis was not Cocaine but was in fact white paper swallowed by the Plaintiff.

63. Plaintiff was discharged from SIUH on May 28, 2021.

64. Mr. Lewis remained handcuffed and shackled to his hospital bed for three days without legal justification or probable cause for the Defendants to have reasonably believed that Plaintiff had ingested Cocaine in his stomach without waiting for the chemical laboratory report.

65. On May 27, 2021, officer Reyes, after having received a copy of the Toxicology report given to him by Staten Island University Hospital- Northwell Health Laboratories submitted the specimen of the substance removed from Plaintiff's stomach to the New York City Police Department Controlled Substance Analysis Section. The receipt of the specimen was given invoice number 5000191205.

66. The NYPD Controlled Substance Analysis Section started their analysis of the specimen on May 28, 2021,

67. The NYPD Controlled Substance Analysis Section concluded their analysis of the substance and found “ No Controlled Substance Identified” (Emphasis added)

68. All charges stemming from Plaintiff arrest on May 26, 2021, were favorably dismissed on July 1, 2021.

69. Officer Reyes knowingly, willfully and deliberately, ignored Plaintiff's explanation that he had swallowed white paper and that there were no drugs in his stomach.

70. Officer Reyes knowingly and willfully ignored the laboratory report he received from the Staten Island University Laboratory report that clearly stated that the substance removed by Plaintiff's stomach was not COCAINE as claimed by Defendant police officer Reyes.

71. That officer Reyes either knew or should have known that the laboratory results of the specimen removed from Plaintiff's stomach was not a criminally controlled substance.

72. Officer Reyes' reliance upon his experience as a New York City Police officer that the white substance found in Plaintiff's stomach was objectively unreasonable and served as a pretext for officer Reyes' false arrest and prosecution of the Plaintiff which lacked probable cause.

73. Officer Reyes had a duty to conduct an investigation as to the substance of the specimen removed from Plaintiff's stomach, by waiting for the SIUH chemical lab report before placing Plaintiff under arrest and chaining Mr. Lewis to his bed with his hands in handcuffs with both legs in shackles. Mr. Lewis was held in this condition for three days.

74. That officer Reyes willfully and deliberately failed to wait for the completion of the laboratory report the he knew or should have known was being performed prior to arresting Plaintiff Lewis.

75. Officer Reyes' conduct was willful, reckless, grossly negligent and exhibited deliberate indifference to Mr. Lewis's right to be from the deprivation of liberty without due process of law.

76. Officer Reyes could not have reasonably believed that the substance was in fact cocaine just because the color of the item inside Mr. Lewis' stomach was white.

77. That officer Reyes failed to mention in the Felony Complaint he prepared that Mr. Lewis was shackled and confined to a bed inside the hospital and that the Staten Island University Hospital had removed an object from Plaintiff's stomach which was analyzed and determined not to have been Cocaine.

78. Officer Reyes lacked probable cause to have arrested Plaintiff and seized Plaintiff by bounding Plaintiff's hands behind his back and placing shackles of Plaintiff's feet.

79. Lack of probable cause has been defined in the State of New York as "failure by the arresting officer to make further inquiry when a reasonable person who have done son." Ramos v. City of New York, , 285 AD 2d 384, 297-98 (App Div., 1st Dept, 2001).

80. Officer Reyes is believed to have received a copy of the toxicology report which clearly stated that the laboratory test for cocaine was negative.

81. Thus Officer Reyes knew that Mr. Lewis had not been engaged ingested Cocaine.

82. Officers Danna and Abraham directly participated in Plaintiff's seizure and or arrest by escorting Mr. Lewis in handcuffs and shackles while Plaintiff was confined in the Staten Island University Hospital from May 26, 2021, through his discharge from the hospital on May 28, 2021.

83. Officer Reyes knowingly and willingly filed a false police report which he knew lacked probable cause yet officer Reyes submitted his police reports to the Staten Island District Attorney's office for the purpose of prosecuting Mr. Lewis with deliberate indifference to Plaintiff's Constitutional rights and in violation of New York State Law.

84. Mr. Lewis, through his prior criminal defense attorney, Marion Elizabeth Campbell of the Legal Aid Society, informed the Richmond County District Attorney's Office of his intent to give testimony at the Grand Jury.

85. Upon information and belief the Grand Jury was never convened.

86. Mr. Lewis was not indicted by a Grand Jury with respect to the felony charges filed by officer Reyes.

87. On July 1, 2021, all charges against Mr. Lewis were favorably dismissed.

88. That the City of New York has established through the New York City Police Department a pattern and practice of filing false police reports submitted by New York City officers who were not properly trained, supervised or discipline for knowing and willingly filing false police reports against defendants even though such officers knew that the Defendant were innocent of crimes.

NOTICE OF CLAIM

89. Plaintiff, in furtherance of his New York State causes of action, filed timely notice of claim within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

90. More than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

91. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

92. That the defendants have wholly refused and neglected to make any adjustment or payment thereof.

93. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST POLICE OFFICERS
CHRISTOPHER REYES, ALEXANDRA DANNA, AND MICHELL ABRAHAM
PURSUANT TO 42 U.S.C SECTION 1983, FOR FALSE ARREST AND FALSE
IMPRISONMENT FOR VIOLATING PLAINTIFF'S RIGHTS ARISING UNDER THE
FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES AND
THE CONSTITUTION OF THE STATE OF NEW YORK ARTICLE 1 SECTION 12.**

94. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 93", with the same force, and effect, as though more fully set forth at length herein.

95. Defendants, police officers Christopher Reyes, Alexandra Danna, and Michelle Abraham acting under color of state law and within the scope of their employment, unreasonably seized Mr. Lewis by placing Plaintiff in handcuffs and leg restraints while Plaintiff was recuperating from surgery on May 26, 2021, at the Staten Island University Hospital.

96. That Defendant Reyes caused Plaintiff's arrest without probable cause to have reasonably believed that the white substance inside Plaintiff's stomach was cocaine.

97. That Defendant Reyes had a duty to read the laboratory report which specifically stated that the substance removed from Mr. Lewis's stomach was not cocaine.

98. That Defendant Reyes intentionally ignored the laboratory report given him by the SIUH and held Plaintiff in custody knowing that the substance inside Plaintiff's stomach was white tobacco paper and not cocaine.

99. That Defendant Reyes and officers Danna and Abraham prevented Mr. Lewis from moving from his hospital bed by having both of Plaintiff's legs shackled and Plaintiff's hands handcuffed to his bed.

100. The Defendant police officers knew that Mr. Lewis was in pain from the surgery and that Plaintiff's pain and suffering would be exacerbated by the method employed by the officers of holding Plaintiff in custody with both of his legs shackled to the bed and with Plaintiff's hands in handcuffs.

101. Mr. Lewis was conscious of his condition and did not give consent to the Defendants to seize him hold him in custody.

102. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely arrested and imprisoned, detained, restrained, and falsely accused Plaintiff of swallowing cocaine in spite of evidence given to officer Reyes that there were no drugs in Plaintiff's stomach.

103. That at all times herein mentioned the Plaintiff was falsely imprisoned, detained, and restrained by police officers Reyes, Danna, and Abraham, who were acting under color of law and within the scope of their employment.

104. That as a result of the false imprisonment of Plaintiff Michael Lewis by the Defendants, their agents, servants and/or employees, the Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom without due process of law and without probable cause.

105. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Plaintiff Michael Lewis was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

106. That in the manner describes herein, the Defendants acted carelessly and recklessly with total disregard of and with deliberate indifference to Plaintiff's constitutional rights.

107. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

108. That as a result of the false imprisonment, detention, and unreasonable search and seizure of the Plaintiff by the Defendants, their agents, servants and/or employees, the plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and depravation of her liberty, and freedom secured under the Fourth Amendment to the Constitution of the United States and the Constitution of the State of New York without probable cause or legal justification.

109. That by reason of the foregoing the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
CHRISTOPHER REYES, ALEXANDRA DANNA, AND MICHELLE ABRAHAM FOR
THE UNREASONABLE SEIZURE OF PLAINTIFF MICHAEL LEWIS PURSUANT TO
THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES
AND PURSUANT TO 42 U.S.C SECTION 1983**

110. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 109", with the same force, and effect, as though more fully set forth at length herein.

111. That as a result of the false imprisonment, detention, and unreasonable search and seizure of the Plaintiff by the Defendants, their agents, servants and/or employees, the Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and depravation of her liberty, and freedom secured under the Fourth Amendment to the Constitution of the United States and the Constitution of the State of New York without probable cause or legal justification.

112. That Defendants officers Reyes, Danna and Abraham unreasonably seized Mr. Lewis by holding Plaintiff in custody with both feet bound by iron shackles and with Plaintiff's hands bound to a bed inside the Staten Island University Hospital on May 26, 2021, where Plaintiff had been place to recover from his operation was objectively unreasonably under the circumstances set forth herein an in violation of Plaintiff rights arising under the Fourth Amendment to the Constitution of the United States.

113. That by reason of the foregoing the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
UNDER THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE
UNITED STATES PURSUANT TO 42 U.S.C. SECTION 1983, FOR FAILURE TO
TRAIN, SUPERVISE OR DISCIPLINE DEFENDANTS, CHRISTOPHER REYES,
ALEXANDRA DANNA, AND MICHELLE ABRAHAM.**

114. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 113", with the same force and effect as though more fully set forth at length herein.

115. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the City of New York.

116. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department with regards to training its officers in investigating individuals who

are admitted in hospitals under the care of physicians undergoing an operation to remove a unknown specimen from the patients' stomach.

117. That the City of New York failure to train, supervise, or discipline Detective Cruz caused Plaintiff to suffer extreme emotional stress.

118. That the failure by the City of New York to properly train, supervise or discipline the underlying police officers, Reyes, Danna ,and Abraham, and other members within the New York City Police Department constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed officers Reyes, Danna and Abraham to believe that they could violate Plaintiffs' constitutional rights with impunity.

119. By reason of the foregoing, officers Reyes, Danna and Abraham and other members of the New York City Police Department, its agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the Plaintiff including his loss of liberty and permanent emotional distress.

120. That the City of New York should be held liable for the underlying constitutional violations committed by non- policy makers employees due to the fact that the City's policy and customs of inaction is objectively deliberately indifferent to the likelihood that a constitutional violation would occur.

121. That there was an obvious need for additional training and supervision which the City of New York was aware of prior to May 26, 2021, and failed to provide.

122. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for

violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

123. That such conduct, or lack thereof exhibited a lack of the degree of due care which a reasonable and prudent New York City Police officer would have shown in executing the duties of the Commissioner of the New York City Police Department.

124. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

125. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST POLICE OFFICERS
CHRISTOPHER REYES, ALEZANDRA DANNA AND MICHELLE ABRAHAM
PURSUANT TO 42 U.S.C SECTION 1983 FOR VIOLATING PLAINTIFF'S RIGHTS
UNDER THE DUE PROCESS OF LAW CLAUSE OF THE FOURTEENTH
AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES**

126. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 125 ", with the same force and effect as though more fully set forth at length herein.

127. That the Defendants officers deprived Plaintiff of his right to liberty by restraining Plaintiff in shackles and handcuffs without probable to have reasonably believed that the white specimen removed from Plaintiff's stomach was cocaine by either ignoring the lab report given to officer Reyes at the hospital or by failing to await the result of the lab report analysis of the white substance removed from Plaintiff's stomach which Mr. had indicated to officer Reyes and the other officers that the substance was white tobacco paper swallowed when Plaintiff had been previously incarcerated.

128. Officer Reyes, however, ignored Mr. Lewis explanation and without waiting for the chemical laboratory report from the Staten Island University Hospital placed Plaintiff in custody

by having Plaintiff's feet shackled and hands bound by handcuffs while Plaintiff was recovering from surgery.

129. That upon information and belief, the SIUH gave a sample of the specimen to officer Reyes who took the specimen to be evaluated by the New York City Police Department Police Laboratory Controlled Substance Analysis Section which confirmed the analysis conducted by the Staten Island University Hospital that the substance removed from Mr. Lewis's stomach was in fact "pieces of paper". **(Emphasis added)**

130. Officer Reyes knew or should have known on May 26, 2021, that the Staten Island University Hospital was evaluating the substance removed from Plaintiff's stomach for cocaine.

131. That officer Reyes with deliberate indifference to Plaintiff's constitutional rights willfully and knowingly arrested Plaintiff without probable cause to have reasonably believed that the substance removed from Plaintiff stomach was cocaine .

132. On May 26, 2021, SIUH produced the lab report confirming the fact that the specimen removed from Plaintiff was not cocaine.

133. That the underlying police officers were aware that the hospital was in the process of identifying the unknown specimen removed from Mr. Lewis's stomach and the results thereof..

134. That the conduct described and set forth more fully in the aforementioned paragraphs shocks the conscious and is in violation of the substantive due process of law clause in the Fourteenth Amendment to the Constitution of the United States.

135. That by charging Plaintiff with criminal possession of a controlled substance and preventing Plaintiff from moving freely after having a surgical procedure by placing shackles around Plaintiff's legs and placing Plaintiff's hands in handcuffs, violated Plaintiff's rights arising under the Due Process Clause to the Constitution of the United States.

136. That by reason of the foregoing the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MICHAEL LEWIS AGAINST DEFENDANT, POLICE OFFICER CHRISTOPHER REYES FOR MALICIOUS PROSECUTION PURSUANT TO 42 U.S. CODE SECTION 1983.

137. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "136", with the same force and effect, as though more fully set forth at length herein.

138. That the Defendants, City of New York, by their agents, servants and / or agents, including but not limited to defendant Police officers Christopher Reyes, Alexandra Danna, and Michelle Abraham directly participated in Plaintiff's arrest and prosecution.

139. Officer Christopher Reyes prepared and filed the Felony Complaint knowing that Plaintiff Lewis had not digested cocaine into his stomach.

140. Officer Reyes initiated the Criminal Prosecution against Plaintiff Lewis by filing a Felony Complaint with the Staten Island District Attorney's Office.

141. Officer Reyes lacked probable cause for the arrest and continued prosecution of the Plaintiff.

142. Officer Reyes failed to either obtain the Staten Island University Hospital's laboratory report on May 26, 2021 which clearly indicated that the substance removed from Plaintiff's stomach was not cocaine as alleged by Defendant Reyes.

143. Officer Reyes prosecuted Plaintiff Lewis with malice based on his failure to ascertain the chemical analysis report prior to the arrest and prosecution of the Plaintiff.

144. That the lack of probable cause for the arrest and prosecution is indicative of malice.

145. That Mr. Lewis was deprived of his liberty for three days chained to his bed inside Staten Island University Hospital without freedom of movement and without the right to have visitors during the period of his unlawful confinement.

146. All charges against Mr. Lewis were favorably dismissed on July 7, 2021.

147. That Plaintiff Lewis has been injured as of result of the malicious prosecution for which this action is brought.

148. That the arrest and continued prosecution of the Plaintiff, Michael Lewis by the was conducted in bad faith, with malice, and with deliberate indifference to the Plaintiff's Constitutional rights

149. That by reason of the foregoing the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
FOR THE NEGLIGENT ACTS OF THE DEFENDANT POLICE OFFICER
CHRISTOPHER REYES, ALEXANDRA DANNA AND MICHELLE ABRAHAM
PURSUANT TO RESPONDEAT SUPERIOR.**

150. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "149", with the same force and effect, as though more fully set forth at length herein.

151. That at all relevant times the Defendants acted under pretense of color of state law and the alleged underlying acts were without authority of law in abuse of the Defendants' governmental powers.

152. That the municipal Defendants City of New York, and the New York City Police Department hired, and supervised police officers Christopher Reyes, Alexandra Danna, and Michelle Abraham.

153. Defendant, Reyes, falsely arrested and charged Plaintiff with Felonies for which officer Reyes knew or should have known lacked probable cause.

154. Officer Reyes committed the wrongs stated herein while acting within the scope of his employment as an employee of the City of New York and the New York City Police Department.

155. Upon information and belief officer Reyes outranked other individual Defendants who participated in the unlawful acts stated herein against Plaintiff.

156. That Officer Reyes had supervisory authority over other officers whom he outranked and participated in the arrest and prosecution of Michael Lewis.

157. As a result, the Municipal Defendants, City of New and the New York City Police Department are liable for the unlawful acts of Defendant Christopher Reyes, Alexandra Danna and Michelle Abraham, under the Common Law of the State of New York for the well-recognized doctrine known as Respondeat Superior.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DR. GAVE FOR
NEGLIGENCE**

158. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "157", with the same force and effect, as though more fully set forth at length herein.

159. Defendant Dr. Gave, was and upon information and belief still is a medical provider employed by the Staten Island University Hospital - Northwell Center.

160. Dr. Gave upon information and belief contacted the New York City Police Department and informed members of the New York City Police Department that Plaintiff Michael Lewis had ingested what Dr. Gave believed was cocaine.

161. That Dr. Gave had conducted a medical procedure which showed a white substance inside Plaintiff's stomach.

162. That upon observing the unknown substance in Plaintiff's stomach, Dr. Gave contacted the New York City Police Department and informed officers withing the New York City Police Department that Plaintiff has ingested cocaine.

163. That Dr. Gave concluded that the with substance inside Plaintiff's stomach was cocaine before the substance was removed from Plaintiff's stomach and taken to the Staten Island lab for analysis.

164. That surgery was performed whereby the unknown substance in Plaintiff's stomach was removed and given to the Staten Island University Lab.

165. Mr. Lewis, upon awakening from surgery found himself under arrest with his feet shackled and his hands in handcuffs.

166. That Dr. Gave informed officer Reyes that Plaintiff had cocaine in his stomach for which officer Reyes arrested Plaintiff before the substance was analyzed by the SIUH lab.

167. The SIUH laboratory report stated that the substance removed from the Plaintiff was not in fact cocaine.

168. Dr. Gave had a duty to protect the Plaintiff was false accusation of having possessed a criminal controlled substance prior to confirming such suspected drug use by having the substance chemically analyzed before contacting the New York City Police Department.

169. That it was reasonably foreseeable that the New York City Police Department would effectuate an unlawful arrest based on Dr. Gave's false information conveyed which resulted in Plaintiff's torment as set forth herein.

170. That Dr. Gave breached his duty of care to the Plaintiff when he knowingly and willfully decided to call the New York City Police Department to inform the police that his patient had in fact consumed cocaine before having the suspected substance chemically analyzed by the Staten Island Hospital.

171. Dr. Gave, as one of Plaintiff's treating physicians, negligently disclosed false information to the NYPD during the scope of his employment with SIUH which resulted in Plaintiff's arrest and caused Plaintiff severe injuries and loss of Plaintiff's liberty.

172. Dr. Gave breached the standard of care owed to the Plaintiff and that his breach was the direct and proximate cause of Plaintiff's physical and emotional injuries.

173. As a direct and proximate result of the negligence of the Dr. Gave, Plaintiff Michael Lewis has suffered physical and mental anguish.

AS AND FOR PLAINTIFF'S EIGHTH CAUSE OF ACTION AGAINST THE STATEN ISLAND UNIVERSITY HOSPITAL- NORTHWELL HEALTH PURSUANT TO NEW YORK STATE LAW FOR RESPONDEAT SUPERIOR.

174. Plaintiff repeats, reiterates and realleges the allegations set forth in Paragraphs "1", through "173", with the same force and effect as though more fully set forth at length herein.

175. That the conduct of the Defendant Dr. Gave occurred while Dr. Gave was on duty during the course and scope of employment with the Staten Island University Hospital- Northwell Health on May 26, 2021.

176. That Defendant, Staten Island University Hospital as Dr. Gave's employer is vicariously liable for its employee's negligent act by Dr. Gave who revealed false information to the New York City Police Department which resulted in Plaintiff's false arrest and prosecution and physical and emotional injuries.

177. That Staten Island University Hospital as the employer of Defendant Dr. Gave, is vicariously liable for the negligent acts of Dr. Gave as set forth in the foregoing paragraphs.

178. Staten Island University Hospital is vicariously liable for the grossly negligent acts of Dr. Gave, an employee of SIUH, which was the direct and proximate cause of Plaintiff's injuries.

179. That as a result of the foregoing Plaintiff Michael Lewis has been seriously injured.

180. That by reason of the foregoing, Plaintiff has been damaged in an amount in excess of the jurisdictional limits of all lower Courts in which this action may otherwise have been brought.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

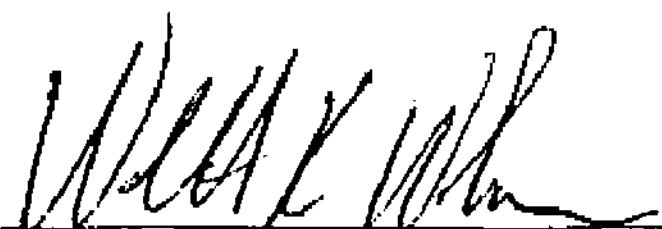
C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees pursuant to 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: January 14, 2022

Bronx, New York

By 

Welton K. Wisham

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Attorney for the Plaintiff
(718) -924-3557 Office
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

X

MICHAEL LEWIS

AFFIRMATION

Plaintiff,

-Against-

CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. CHRISTOPHER
REYES, SHIELD NO. 24403, IN HIS INDIVIDUAL CAPACITY,
P.O. ALEXANDRA DANNA, SHIELD NO. 26198, IN HER INDIVIDUAL
CAPACITY, P.O. MICHELLE ABRAHAM, SHIELD NO. 1124,
IN HER INDIVIDUAL CAPACITY, STATEN ISLAND
UNIVERSITY HOSPITAL-NORTHWELL HEALTH,
AND DR. GAVE, IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

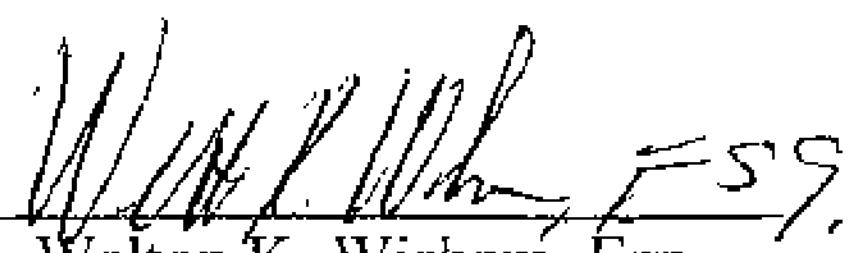
I, **Welton K. Wisham, Esq.** am an Attorney at Law duly admitted to practice law in the
Courts of the State of New York, and say under penalty of perjury that: I am the attorney of
record for the Plaintiff, Michael Lewis and state that;

That I have read the annexed Summons and Complaint and know the contents thereof and
the same are true to my knowledge, except those matters therein which are stated to be alleged
on information and belief, and as to those matters, I believe them to be true.

My beliefs, as to those matters therein not stated upon knowledge, are based upon
information contained within my case file and the investigation and conversations conducted
with the Plaintiff.

The reason I make this affirmation instead of the Plaintiff is that the Plaintiff resides in a
county outside that which this affiant maintains an office.

Dated: January 14, 2022
Bronx, New York

By  Welton K. Wisham, Esq.
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